ANNEXURE - 2

GENERAL CONDITIONS OF CONTRACT

1. PREAMBLE

DEFINITIONS AND INTERPRETATIONS:-

In this contract the following expressions shall bear the following meaning namely:

- **"GENERAL CONTRACTOR (GC)"** shall mean "**M/s. L&T Construction**" , their successors from time to time
- "**NOMINATED SUBCONTRACTOR (NSC)**" shall mean **M/s.----------** to carry out Works as specifically mentioned in Schedule / Scope of Works of the contract / Work Order/ enquiry.
- This **Contract/ Work Order** embodies the entire agreement between GENERAL CONTRACTOR and NOMINATED SUBCONTRACTOR
- "**Site/Project**" shall mean **"Salsette 27"**
- **"Work/s"** shall mean the activities to be undertaken by the NOMINATED SUBCONTRACTOR/ as defined under the various provisions of this enquiry/contract.
- **"Project Director / Project Manager / Project In Charge"** shall mean the person appointed by GENERAL CONTRACTOR to be In-Charge of the project**.**

2. ORDER OF PRECEDENCE

All Contract Documents (as defined in the Cover Note) and subsequently issued change notices (as discussed in Clause [Changes and Consequential Adjustments] of this Annexure 2) and amendments are essential parts of this Contract and a requirement occurring in one is binding as though occurring in all. In resolving conflicts, discrepancies, errors or omissions the following order of precedence shall be used:

1. Change Notices and Amendment, if any
2. Annexure- 4 - Schedule of quantities and prices
3. Annexure – 8 – List of Makes
4. Annexure- 7- Drawings
5. Annexure-3 – Condition of Particular Application & enclosed annexures
6. Annexure-2 - General Conditions
7. Annexure-1 – Cover Note
8. Annexure-5 – Contract Safety Document

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9. Annexure-6- Statutory Compliances

In case of any ambiguity or discrepancy being found in the Contract Documents, the NOMINATED SUBCONTRACTOR shall immediately (before taking up such works / during execution) bring to the notice of the GENERAL CONTRACTOR and requesting the GENERAL CONTRACTOR to issue necessary clarification or instruction in this regard. In such an event, provisions of Clause [Contract Interpretation] of this Annexure 2 shall apply.

3. INDEPENDENT NOMINATED SUBCONTRACTOR

NOMINATED SUBCONTRACTOR shall act as an independent NOMINATED SUBCONTRACTOR, working on a principal to principal basis and not as the agent of the GENERAL CONTRACTOR in performing this Contract, maintaining complete control over its employees and all of its suppliers and subcontractors. Nothing contained in this Contract or any purchase order or subcontract awarded by the NOMINATED SUBCONTRACTOR shall create any contractual relationship between any such supplier or subcontractor and the GENERAL CONTRACTOR nor shall it create any partnership between the NOMINATED SUBCONTRACTOR and the GENERAL CONTRACTOR. The NOMINATED SUBCONTRACTOR shall perform the Work hereunder in accordance with the terms and conditions mentioned herein.

4. AUTHORIZED REPRESENTATIVES

Before starting Work, NOMINATED SUBCONTRACTOR shall designate in writing an authorized representative who shall be acceptable to GENERAL CONTRACTOR to represent and act for the NOMINATED SUBCONTRACTOR and shall specify any and all limitations of such representative's authority to the GENERAL CONTRACTOR. Such representative shall be present at the Job Site at all times when Work is in progress and shall be empowered to receive all communications from the GENERAL CONTRACTOR in accordance with this Contract for and on behalf of the NOMINATED SUBCONTRACTOR. During periods when the Work is suspended (in accordance with Clause [Suspension] of this Annexure 2, the NOMINATED SUBCONTRACTOR may appoint an alternate authorized representative, if required, who shall be acceptable to GENERAL CONTRACTOR for any emergency Work that may be required. All communications given to the authorized representative of the NOMINATED SUBCONTRACTOR by the GENERAL CONTRACTOR in accordance with this Contract shall be binding upon the NOMINATED SUBCONTRACTOR. The GENERAL CONTRACTOR shall designate in writing one or more representatives to represent and act for and represent the GENERAL CONTRACTOR, and to receive communications from the NOMINATED SUBCONTRACTOR. Either Party has the

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right to change its authorized representative by providing a written notice of [**Fifteen (15)**] days to the Other Party.

5. CONTRACT INTERPRETATION

All questions concerning interpretation or clarification of this Contract or applicable standards and codes, including, discrepancies, errors or omissions, or the acceptable performance thereof by the NOMINATED SUBCONTRACTOR, shall be immediately submitted in writing to the GENERAL CONTRACTOR for resolution. Subject to Clause [Changes and Consequential Adjustments] of this Annexure 2 all determinations, instructions, and clarifications of the GENERAL CONTRACTOR shall be final and conclusive unless determined to have been fraudulent or capricious or so grossly erroneous as necessarily to imply bad faith, or not supported by reasonable evidence. At all times the NOMINATED SUBCONTRACTOR shall proceed with the Work in accordance with the determinations, instructions, and clarifications of the GENERAL CONTRACTOR. The NOMINATED SUBCONTRACTOR shall be solely responsible for requesting instructions or interpretations as may be required and shall be solely liable for any costs and expenses arising from its failure to do so.

6. PERMITS

The NOMINATED SUBCONTRACTOR shall procure and pay for all permits, licenses, certifications and other applicable governing authority requirements, statutory compliances and inspections, other than inspections performed by the GENERAL CONTRACTOR, and shall furnish any documentation, bonds, security or deposits required to permit performance of the Work. GENERAL CONTRACTOR shall provide the NOMINATED SUBCONTRACTOR with Municipal permission for commencement of work.

7. TAXES

NOMINATED SUBCONTRACTOR shall be liable to bear and pay all present and future taxes and assessments of every nature due in connection with the Work under this Contract and shall make any and all payroll deductions required by the laws of India, and hereby agrees to indemnify and holds harmless the GENERAL CONTRACTOR, its officers, agents and employees etc. from any liability on account of any and all such taxes, levies, duties, assessments and deductions.

Where the GENERAL CONTRACTOR is obliged to withhold tax, pursuant to Applicable Laws, on any monies payable to the NOMINATED SUBCONTRACTOR under this Contract, the GENERAL CONTRACTOR may provide the NOMINATED SUBCONTRACTOR with the appropriate tax certificate to evidence such payment of taxes in a timely manner.

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In the event, any delay is caused in the achievement of completion of the Work as per Contract Schedule by the NOMINATED SUBCONTRACTOR, due to the reasons solely attributable to the GENERAL CONTRACTOR any additional taxes, duties or levies (other than Income Tax) payable by the NOMINATED SUBCONTRACTOR due to such delay shall be reimbursed by the GENERAL CONTRACTOR.

Any variation in taxes, pursuant to Applicable Laws (Applicable for GST only) as defined under "Annexure- 4 - Schedule of quantities and prices" shall be accordingly modifies and reimbursed by GENERAL CONTRACTOR as per prevalent laws. Other hidden taxes, if any, under this scope of work shall prevail throughout the contract and same shall be borne by NOMINATED SUBCONTRACTOR.

8. LABOUR, PERSONNEL AND WORK RULES

The NOMINATED SUBCONTRACTOR shall employ only competent and skilled personnel to perform the Work and shall immediately upon intimation from the GENERAL CONTRACTOR, remove from the Job Site any NOMINATED SUBCONTRACTOR personnel found to be unfit or to be acting in violation of any provision of this Contract or to be of undesirable conduct. The NOMINATED SUBCONTRACTOR shall comply with and enforce Project and Job Site procedures, regulations, Work rules and Work hours established by the GENERAL CONTRACTOR. The GENERAL CONTRACTOR may at its sole discretion, directly deny access to the Job Site to any personnel of the NOMINATED SUBCONTRACTOR by providing a written notice of Seven (7) days to the NOMINATED SUBCONTRACTOR. In the event any personnel of the NOMINATED SUBCONTRACTOR is so denied access to the Job Site, the NOMINATED SUBCONTRACTOR shall promptly replace such personnel with another personnel who is fully competent and skilled to perform the Work.

The NOMINATED SUBCONTRACTOR shall be solely responsible for making all arrangements for the payment, housing, food and transportation of its labour/ workmen. The NOMINATED SUBCONTRACTOR shall comply with the provisions of all labour laws including, in particular, the Minimum Wages Act 1948, Workmen Compensation Act 1923, Contract Labour (Regulation and Abolition) Act 1970, Payment of Wages Act 1936, Industrial Disputes Act 1947, The Employees Provident Fund and Misc. Provision Act 1952, The Factories Act 1948 and The Mumbai Labour Welfare Fund Act 1953, in respect of performance of the Work pursuant to this Contract.

Notwithstanding anything to the contrary contained herein, the NOMINATED SUBCONTRACTOR hereby agrees and acknowledges that all personnel engaged by the NOMINATED SUBCONTRACTOR and all its representatives, agents, sub-contractors shall be employee(s) of the

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NOMINATED SUBCONTRACTOR only and the NOMINATED SUBCONTRACTOR shall be solely responsible for payment of all statutory obligations of the said personnel, representatives, agents, sub-contractors, etc.

In case the GENERAL CONTRACTOR becomes liable to pay any wages or dues to the labour or to any Government agency under any of the provisions (or any statutory modifications thereof) of the Minimum Wages Act 1948, Workmen Compensation Act 1923, Contract Labour (Regulation and Abolition) Act 1970, Payment of Wages Act 1936, Industrial Disputes Act 1947, The Employees Provident Fund and Misc. Provision Act 1952, The Factories Act 1948, The Mumbai Labour Welfare Fund Act 1953 or any other law due to an act or omission by the NOMINATED SUBCONTRACTOR, the GENERAL CONTRACTOR may make such payments and the total amount of such payments may be deducted from amounts due or which may become due to the NOMINATED SUBCONTRACTOR or otherwise recovered by the GENERAL CONTRACTOR in any manner it may deem fit.

As far as possible, unskilled workers shall be engaged from the local area in which the Work is being executed.

Children, as described in the labour laws [Child Labour (Prohibition and Regulation) Rules, 1986], are strictly prohibited on Job Site. NOMINATED SUBCONTRACTOR shall not employ any Child labour on Job Site having age below Eighteen (18). In case of absence of age proof, age of Child Labour shall be certified by medical investigation.

The NOMINATED SUBCONTRACTOR shall maintain adequate records, such as wage books, attendance register, statutory contributions, classes of labour employed by the NOMINATED SUBCONTRACTOR and its sub-contractors and other books/ records required to be maintained and shall provide these records to the GENERAL CONTRACTOR for inspection, as and when demanded by the GENERAL CONTRACTOR.

9. COMMERCIAL ACTIVITIES

Neither the NOMINATED SUBCONTRACTOR nor its employees shall directly or indirectly undertake or establish any commercial activity or issue concessions or permits of any kind to third parties for undertaking or establishing commercial activities on the Job Site or at the Project or on any other land owned or controlled by the GENERAL CONTRACTOR

10. SITE CONDITIONS AND NATURAL RESOURCES

The NOMINATED SUBCONTRACTOR hereby confirms that the NOMINATED SUBCONTRACTOR has inspected and satisfied itself concerning the nature and location of the Work and the general and local conditions, including but not limited to the following:

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1. Nature of Job Site and its adequacy and suitability for carrying out Work;
2. Transportation, access, disposal, handling and storage of materials;
3. Availability and quality of labour, water, electric power and road conditions;
4. Climatic conditions, tides, and seasons;
5. River hydrology and river stages;
6. Physical conditions at the Job Site and the Project area as a whole including accommodation;
7. Topography and ground surface conditions;
8. Equipment and facilities needed preliminary to and during the performance of the Work;
9. Risk of injury or damage to adjacent property and its occupiers; and
10. Other works being carried out in Project area and possible interference or obstructions.

The failure of NOMINATED SUBCONTRACTOR to acquaint itself with any applicable conditions will not relieve NOMINATED SUBCONTRACTOR of the responsibility for properly estimating the difficulties, time or cost of successfully performing NOMINATED SUBCONTRACTOR's obligations under this Contract, nor shall the NOMINATED SUBCONTRACTOR be able to seek any increase in cost or Contract Price or extension of time for performing Work, on account of conditions at the Job Site.

11. ENVIRONMENTAL REQUIREMENTS

Throughout performance of the Work, the NOMINATED SUBCONTRACTOR shall conduct all operations in such a way as to minimize impact upon the natural environment and prevent any spread or release of contaminated or hazardous substances. The NOMINATED SUBCONTRACTOR shall undertake work in accordance with the standards and requirements of ISO 14001 and other applicable standards. The NOMINATED SUBCONTRACTOR shall be inter alia liable/ responsible for the following:

1. To comply with all Applicable Laws, regulations, ordinances, statutes, rules, and codes governing environmental requirements and conduct the Work based on the requirements of this Contract, including compliance with permit requirements;
2. To provide all documentation required by all levels of governing authority or the GENERAL CONTRACTOR concerning environmental requirements;

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3. To ensure the compliances in accordance with NOMINATED SUBCONTRACTOR's established practices, including but not limited to compliance with all Applicable Laws/regulations;

4. To require that its personnel do not hunt, fish, feed, capture, extract, or otherwise disturb aquatic, animal, or vegetative species within the Project boundary or while performing any tasks in performance of the Work;

5. To immediately stop work in any area where contaminated soil indicators (such as odor or appearance), unknown containers, piping, underground storage tanks, or similar structures are discovered; or any other materials, which are reasonably suspected to be toxic or hazardous.

   The NOMINATED SUBCONTRACTOR shall then immediately notify the GENERAL CONTRACTOR and the stop work area shall be determined by the GENERAL CONTRACTOR and confirmed in writing. Activity in the stop work area shall only resume upon the GENERAL CONTRACTOR's written approval. If such stoppage of Work occurs due to reasons attributable to the NOMINATED SUBCONTRACTOR, the NOMINATED SUBCONTRACTOR shall be fully responsible for the costs and consequences thereof, including those provided for in this Contract for 'Delay by the NOMINATED SUBCONTRACTOR'.

6. To immediately stop work in any area where cultural resources or artifacts with archaeological or historical value are discovered, and immediately notify the GENERAL CONTRACTOR. The stopped work shall proceed in the manner set forth in sub clause above. No artifacts, items, or materials shall be disturbed or taken from the area of discovery. Neither the NOMINATED SUBCONTRACTOR nor any of its suppliers and sub-contractors and/or employees, personnel shall have / claim any rights whether proprietary or otherwise to such artifacts, items, or materials, which shall be secured and guarded until handed over to the GENERAL CONTRACTOR. The NOMINATED SUBCONTRACTOR shall also require that its personnel, representatives, agents, employee(s) and those of its suppliers and sub-contractors comply with this provision and respect all historic and archaeological sites in the area.

7. To manage, store, and dispose of all hazardous waste generated by NOMINATED SUBCONTRACTOR during its Work in accordance with national, regional, and local requirements. This includes, but is not limited to:- waste minimization; hazardous materials inventory with Material Safety Data Sheets (MSDS) for each hazardous material on Job Site; employee training; hazardous waste spill management and

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reporting; proper storage of hazardous waste; equipment decontamination; onsite and offsite transport of hazardous waste; and selection and use of offsite final disposal facilities.

It is clarified for removal of doubt that the NOMINATED SUBCONTRACTOR's obligations under the Clause [Indemnity] of this Annexure 2 shall also apply to any liability arising out of or in connection with or incidental to the NOMINATED SUBCONTRACTOR's performance or failure to perform as per provisions of this Clause.

12. GENERAL CONTRACTOR'S RECORDS OF SITE CONDITIONS

Where GENERAL CONTRACTOR has got the details of investigations of conditions in areas where Work is to be performed under this Contract, such investigations are made for the purpose of study and design. If the records of such investigation are included in the Contract Documents, the said records are only for the purpose of reference and interpretation of such records shall be the sole responsibility of NOMINATED SUBCONTRACTOR. The GENERAL CONTRACTOR does not assume any responsibility whatsoever in respect to the sufficiency or accuracy of such investigations, the records thereof, or of the interpretations set forth and there is no warranty or guarantee, either express or implied, that the conditions indicated by such investigations or records thereof are representative of those existing throughout such areas, or any part thereof, or that unforeseen developments may not occur, or that materials other than or in proportions different from those indicated may not be encountered.

13. TITLE TO MATERIALS FOUND

The title to water, soil, rock, gravel, sand, minerals, timber, fossils, antiquities and any other materials of artistic, historical or monetary value developed or obtained or found in the excavation or other operations of NOMINATED SUBCONTRACTOR or any of subcontractors and the right to use said materials or dispose of same is hereby expressly reserved by the GENERAL CONTRACTOR. The NOMINATED SUBCONTRACTOR may, at the sole discretion of GENERAL CONTRACTOR, be permitted, with or without charge, to use in the Work any such materials, which meet the requirements of this Contract. Unless such permission is granted by the GENERAL CONTRACTOR, the NOMINATED SUBCONTRACTOR shall not use such material and shall forthwith upon discovery of such material inform the GENERAL CONTRACTOR and preserve and protect such material till the GENERAL CONTRACTOR takes possession of the same.

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14. SURVEY CONTROL POINTS AND LAYOUTS

Survey Control Points as shown on the Drawings will be established by the GENERAL CONTRACTOR.

The NOMINATED SUBCONTRACTOR shall complete the layout of all Work and shall be responsible for execution of the Work in accordance with the locations, lines, grades and Contract Milestones specified or shown on the drawings specified, subject to such modifications as the GENERAL CONTRACTOR may require as the Work progresses.

If the NOMINATED SUBCONTRACTOR or any of its subcontractors or any of their representatives, personnel, agents or employees etc. move or displace or destroy or render inaccurate any survey control point, such survey control point shall be replaced by the GENERAL CONTRACTOR at the NOMINATED SUBCONTRACTOR's expense. No separate payment will be made for survey Work performed by NOMINATED SUBCONTRACTOR.

15. NOMINATED SUBCONTRACTOR's WORK AREA

All the NOMINATED SUBCONTRACTOR Work areas on the Job Site will be demarcated by the GENERAL CONTRACTOR. The NOMINATED SUBCONTRACTOR shall confine its operations to the areas so demarcated by the GENERAL CONTRACTOR.

16. CLEANING UP

The NOMINATED SUBCONTRACTOR shall, at all times, keep its Work areas in a neat, clean and safe condition. Upon completion of any portion of the Work, the NOMINATED SUBCONTRACTOR shall promptly remove from the Work area all its equipment, construction plant, temporary structures and surplus materials not to be used at or near the same location during later stages of the Work.

Upon completion of the Work and prior to final payment, the NOMINATED SUBCONTRACTOR shall at its expense satisfactorily dispose of all rubbish, remove all plant, buildings, equipment and materials belonging to the NOMINATED SUBCONTRACTOR and return to the GENERAL CONTRACTOR's warehouse or Job Site storage area all salvageable of GENERAL CONTRACTOR supplied materials or the materials against which the Secured Advance or the price has been paid by the GENERAL CONTRACTOR. The NOMINATED SUBCONTRACTOR shall leave the premises in a neat, clean and safe condition.

In the event, the NOMINATED SUBCONTRACTOR fails to comply with the foregoing requirements, the GENERAL CONTRACTOR may at its discretion do the needful and deduct the

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cost/expenses in respect of the same from the NOMINATED SUBCONTRACTOR's Running Account (R.A) Bills or the final bill or any payment due to the NOMINATED SUBCONTRACTOR and/or recover the same from the NOMINATED SUBCONTRACTOR.

17. COOPERATION WITH OTHERS

The GENERAL CONTRACTOR, other NOMINATED SUBCONTRACTOR's and other subcontractors may be working at the Job Site during the performance of this Contract and the NOMINATED SUBCONTRACTOR's Work or use of certain facilities may be interfered with as a result of such concurrent activities. The GENERAL CONTRACTOR reserves the right to require the NOMINATED SUBCONTRACTOR to schedule the order of performance of the Work in such a manner as will minimize interference with Work of any of the parties involved. The NOMINATED SUBCONTRACTOR hereby undertakes to maintain smooth and cordial relations with the employee(s), agent(s), representatives(s) of the GENERAL CONTRACTOR and other NOMINATED SUBCONTRACTORs working at Project, and also the employee(s), agent(s), representatives(s) of the sub-contractors of the NOMINATED SUBCONTRACTOR.

18. RESPONSIBILITY FOR WORK, SECURITY AND PROPERTY

A. Work in Progress, Equipment and Material. NOMINATED SUBCONTRACTOR shall be responsible for and shall bear any and all risk of loss or damage to Work in progress and, pursuant to Clause [Title and Risk of Loss] contained in Annexure 3 to equipment and materials.

B. Delivery, Unloading and Storage. The NOMINATED SUBCONTRACTOR's responsibility for materials and plant equipment required for the performance of this Contract shall include:

1. Receiving and unloading;
2. Storing in a secure place and in a manner subject to the GENERAL CONTRACTOR's review. Outside storage of materials and equipment shall be in weather tight enclosures provided by the NOMINATED SUBCONTRACTOR;
3. Delivering from storage to construction site all materials and plant and equipment as required; and
4. Maintaining complete and accurate records for GENERAL CONTRACTOR's inspection of all materials and plant equipment received, stored and issued for use in the performance of the Contract.

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C. Security. The NOMINATED SUBCONTRACTOR shall comply with the GENERAL CONTRACTOR's security requirements in respect of the Job Site. The NOMINATED SUBCONTRACTOR shall cooperate with the GENERAL CONTRACTOR on all security matters and shall promptly comply with any Project security arrangements established by the GENERAL CONTRACTOR. Such compliance with these security requirements shall not relieve the NOMINATED SUBCONTRACTOR of its responsibility for maintaining proper security, nor shall it be construed as limiting in any manner the NOMINATED SUBCONTRACTOR's obligation with respect to all Applicable Laws and regulations and to undertake reasonable action to establish and maintain secure conditions at the Job Site.

D. Property. The NOMINATED SUBCONTRACTOR shall plan and conduct its operations so as not to:

1. Enter upon land in their natural state unless authorized by the GENERAL CONTRACTOR; and/or
2. Damage, close or obstruct any utility installation, highway, road or other property until licenses, permits and the GENERAL CONTRACTOR's permission therefore have been obtained; and/or
3. Disrupt or otherwise interfere with the operation of any pipeline, telephone, electric transmission line, ditch or structure unless otherwise specifically authorized under this Contract; and/or
4. Damage or destroy cultivated and planted areas, and vegetation such as trees, plants, shrubs, and grass on or adjacent to the premises which, as determined by the GENERAL CONTRACTOR, do not interfere with the performance of this Contract. This includes damage arising from performance of Work through operation of equipment or stockpiling of materials.

The NOMINATED SUBCONTRACTOR shall not be entitled to any extension of time or compensation on account of the NOMINATED SUBCONTRACTOR's failure to protect all facilities, equipment, materials or other property as described herein. All risks and costs in connection with any repairs or restoration necessary or required by reason of unauthorized obstruction, damage or use shall be borne by the NOMINATED SUBCONTRACTOR. The GENERAL CONTRACTOR shall also be entitled to directly deduct the same from the amount of running R.A. bills or the Final Bill raised by the NOMINATED SUBCONTRACTOR or recover the same from the NOMINATED SUBCONTRACTOR.

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19. NOMINATED SUBCONTRACTOR'S PLANT, EQUIPMENT AND FACILITIES

NOMINATED SUBCONTRACTOR shall provide and use for the Work only such construction plant and equipment as are capable of producing the quality and quantity of Work and materials required by this Contract and within the time or times specified in Clause [Commencement, Progress and Completion of The Work] of Conditions of Particular Application – Annexure 3.

Before proceeding with the Work, NOMINATED SUBCONTRACTOR shall furnish GENERAL CONTRACTOR with information and drawings relative to such equipment, plant and facilities as GENERAL CONTRACTOR may request. Upon written order of GENERAL CONTRACTOR, NOMINATED SUBCONTRACTOR shall discontinue operation of unsatisfactory plant, equipment or facilities and shall either modify the unsatisfactory items or remove such items from the Job Site.

NOMINATED SUBCONTRACTOR shall, at the time any equipment is moved onto the Job Site, present to GENERAL CONTRACTOR an itemized list of all equipment and tools, including but not limited to power tools, welding machines, pumps and compressors. Said list must include description and quantity, and serial number where applicable. The NOMINATED SUBCONTRACTOR shall identify its equipment by color (other than yellow), decal and etching. Prior to the removal of any or all equipment from the Job Site, the NOMINATED SUBCONTRACTOR shall clear such removal through the GENERAL CONTRACTOR. The NOMINATED SUBCONTRACTOR shall not remove construction plant, equipment or tools from the Job Site before the Work is finally accepted, without the GENERAL CONTRACTOR's written approval.

20. ILLUMINATION

When any part of Work is performed at night or where daylight is obscured, the NOMINATED SUBCONTRACTOR shall, at its expense, provide artificial light sufficient to permit Work to be carried on efficiently, satisfactorily and safely, and to permit thorough inspection. During such time periods the access to the place of Work shall also be clearly illuminated. All wiring for electric light and power shall be installed and maintained in a safe manner and meet all applicable codes and standards.

21. USE OF COMPLETED PORTIONS OF WORK

Whenever, as determined by the GENERAL CONTRACTOR, any portion of the Work performed by the NOMINATED SUBCONTRACTOR is suitable for use, the GENERAL CONTRACTOR may, upon written notice, occupy and/or use such portion or cause the same to be so occupied and/or

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used. Use shall not constitute acceptance, relieve NOMINATED SUBCONTRACTOR of its responsibilities, or act as a waiver by the GENERAL CONTRACTOR of any terms of this Contract.

The NOMINATED SUBCONTRACTOR shall not be liable for normal wear and tear or for repair of damage caused by any misuse during such occupancy or use by the GENERAL CONTRACTOR. If such use increases the cost or time of performance of remaining portions of the Work, the NOMINATED SUBCONTRACTOR shall, pursuant to Clause [Changes and its Consequential Adjustments] of this Annexure 2 be entitled to an equitable adjustment in Contract Price or Contract Schedule under this Contract. The decision of the GENERAL CONTRACTOR with regard to such equitable adjustment shall be final and binding.

If, as a result of the NOMINATED SUBCONTRACTOR's failure to comply with the provisions of this Contract, such use proves to be unsatisfactory to the GENERAL CONTRACTOR, the GENERAL CONTRACTOR shall be entitled to have the right to continue such use if such portion of the Work can in opinion of the GENERAL CONTRACTOR, without injury to the GENERAL CONTRACTOR, be taken out of service for correction of defects, errors, omissions or replacement of unsatisfactory materials or equipment as necessary for such portion of the Work to comply with this Contract; provided that the NOMINATED SUBCONTRACTOR shall take the remedial action at the earliest and no later than [30] days of the GENERAL CONTRACTOR requiring the NOMINATED SUBCONTRACTOR to do so, unless otherwise mutually agreed in writing between the Parties.

22. USE OF GENERAL CONTRACTOR'S CONSTRUCTION EQUIPMENT OR FACILITIES

Where the NOMINATED SUBCONTRACTOR requests the GENERAL CONTRACTOR and the GENERAL CONTRACTOR agrees to make available to the NOMINATED SUBCONTRACTOR available equipment or facilities belonging to the GENERAL CONTRACTOR for the performance by the NOMINATED SUBCONTRACTOR of the Work under this Contract, the following conditions shall apply:

a. Subject to availability, Equipment or facilities will be provided to the NOMINATED SUBCONTRACTOR on need basis as per the agreed Responsibility Matrix – (Annexure - 3A);
b. The NOMINATED SUBCONTRACTOR shall assure itself of the condition of such equipment and assume all risks and responsibilities during its use;
c. The NOMINATED SUBCONTRACTOR shall, as part of its obligation under Clause [Indemnity] defend, indemnify and hold harmless the GENERAL CONTRACTOR from and against all claims, demands and liabilities arising from or relating to the use of such equipment.

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d. If such equipment is furnished with an operator, the services of such operator will be performed under the complete direction and control of the GENERAL CONTRACTOR; and
e. The NOMINATED SUBCONTRACTOR shall not claim any right, title, interest in such equipments, facilities and the same shall be returned by the NOMINATED SUBCONTRACTOR to the GENERAL CONTRACTOR in good working conditions
f. GENERAL CONTRACTOR shall keep adequate vertical transport, as deemed necessary for completion of the Project in entirety within stipulated time frame, however arrangements of job specific plants and equipment's shall be reasonability of NOMINATED SUBCONTRACTOR at its own cost.

23. QUALITY ASSURANCE

NOMINATED SUBCONTRACTOR shall carry out the entire scope of Work in line with Description of Items detailed in the Annexure 4 - Schedule of Quantities and Prices, Annexure 7Drawings conforming to IS and / or other relevant standards.

The NOMINATED SUBCONTRACTOR shall, while executing the Work, put all necessary efforts for assurance of quality in performing each activity. To ensure quality, NOMINATED SUBCONTRACTOR shall follow the instructions/ guidelines given by the GENERAL CONTRACTOR.

GENERAL CONTRACTOR are entitled to inspect the Quality of Work carried out by the NOMINATED SUBCONTRACTOR at any point of time. In case, significant adverse Quality of Work or deviation from accepted standard is observed, GENERAL CONTRACTOR shall be entitled to issue "Stop Work" Order, and on receipt of such Stop Work Order, the NOMINATED SUBCONTRACTOR shall stop any/ all activity(s) within reasonable time and take necessary corrective measures in line with GENERAL CONTRACTOR's instruction at expense of the NOMINATED SUBCONTRACTOR. Before recommencing the Work the NOMINATED SUBCONTRACTOR shall take GENERAL CONTRACTOR's written permission.

GENERAL CONTRACTOR also reserve the right to perform quality assurance audits at any stage of Work.

24. INSPECTION, QUALITY SURVEILLANCE, REJECTION OF MATERIALS AND WORKMANSHIP

All material and equipment furnished and Work performed shall be properly inspected by the NOMINATED SUBCONTRACTOR at its expense, and shall at all times be subject to quality surveillance and quality audit by the GENERAL CONTRACTOR, or their authorized

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representatives who, upon reasonable notice, shall be afforded full and free access to the shops, factories or other places of business of the NOMINATED SUBCONTRACTOR and its suppliers and subcontractors for such quality surveillance or audit. The NOMINATED SUBCONTRACTOR shall provide safe and adequate facilities, drawings, documents and samples as requested, and shall provide assistance and cooperation including stoppage of Work to perform such examination as may be necessary to determine compliance with the requirements of this Contract. Any Work covered prior to any quality surveillance or test by the GENERAL CONTRACTOR shall be uncovered and replaced at the expense of the NOMINATED SUBCONTRACTOR if such covering interferes with or obstructs such inspection or test. Failure of the GENERAL CONTRACTOR to make such quality surveillance or to discover defective design, equipment, materials or workmanship shall not relieve the NOMINATED SUBCONTRACTOR of its obligations under this Contract nor prejudice the rights of the GENERAL CONTRACTOR thereafter to reject or require the correction of defective Work in accordance with the provisions of this Contract.

If any Work is determined by GENERAL CONTRACTOR to be defective or not in conformance with this Contract the provisions contained in Clause [Warranty] of this Annexure 2 shall apply.

The NOMINATED SUBCONTRACTOR hereby represents and warrants that the quality of the workmanship in respect of the performance of the Work would be of internationally acceptable standards in projects of a like nature.

25. TESTING

Unless otherwise provided in the Contract, testing of equipment, materials or Work shall be performed by the NOMINATED SUBCONTRACTOR at its expense and in accordance with the Specifications and Description of Items as detailed in Schedule of Quantities and Prices – Annexure - 4. Should tests in addition to those required by this Contract be desired by the GENERAL CONTRACTOR , the NOMINATED SUBCONTRACTOR will be given reasonable notice by the GENERAL CONTRACTOR to permit such testing. Costs towards such additional tests will be at the GENERAL CONTRACTOR's expense.

In case NOMINATED SUBCONTRACTOR fails to submit test reports within the stipulated time frames, GENERAL CONTRACTOR at his discretion can conduct test for those items. Cost of such test shall later be conveyed to NOMINATED SUBCONTRACTOR and according adjustment shall be done in RA bills/Final bills.

The GENERAL CONTRACTOR shall have a right to require the NOMINATED SUBCONTRACTOR to furnish samples as requested by the GENERAL CONTRACTOR and/or its agents and shall provide reasonable assistance and cooperation necessary to permit quality,

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suitability and other necessary tests to be performed on materials or Work in place including reasonable stoppage of Work during testing.

26. EXPEDITING

The equipment and materials furnished and Work performed under this Contract shall be subject to expediting by the GENERAL CONTRACTOR or their representatives who shall be afforded full and free access to the shops, factories and other places of business of NOMINATED SUBCONTRACTOR and its suppliers and subcontractors for expediting purposes.

27. CHANGES AND CONSEQENTIAL ADJUSTMENTS

GENERAL CONTRACTOR may, at any time during the term of this Contract, issue an instruction to the NOMINATED SUBCONTRACTOR ("**Change Notice**") changing the scope of Work to be performed under this Contract, which shall include but not be limited to the following changes:

1. In the drawings, designs or specifications;
2. In the method, manner, or sequence of Work;
3. In GENERAL CONTRACTOR furnished facilities, equipment, materials, services or site(s);
4. In the scope of Work, (i.e. addition or reduction to the Works), in any manner;
5. Directing acceleration or deceleration in performance of the Work;
6. Modifying the Contract Schedule or the Contract Milestones; and
7. Change in Law

along with its claim for an adjustment under this Clause, to the Contract Price or the time period for performance of the Work, as the GENERAL CONTRACTOR deems necessary.

In addition, in the event of an emergency, which the GENERAL CONTRACTOR determines endangers life or property, the GENERAL CONTRACTOR may issue oral orders to the NOMINATED SUBCONTRACTOR for any work required by reason of such emergency. The NOMINATED SUBCONTRACTOR shall commence and complete such emergency work as directed by the GENERAL CONTRACTOR. Such orders will be confirmed by the GENERAL CONTRACTOR by a Change Notice as soon as practicable.

All other modifications to this Contract shall be by written Amendment signed by the NOMINATED SUBCONTRACTOR and GENERAL CONTRACTOR.

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If at any time the NOMINATED SUBCONTRACTOR believes that acts or omissions of the GENERAL CONTRACTOR constitute a change to the Work not covered by a Change Notice, the NOMINATED SUBCONTRACTOR shall within Seven (07) days of discovery of such act or omission submit a written request for a change notice explaining in detail the basis for its request. The GENERAL CONTRACTOR are entitled either to issue a Change Notice or deny the request of the NOMINATED SUBCONTRACTOR in writing. The decision of the GENERAL CONTRACTOR shall be final and binding in this regard. In the event the GENERAL CONTRACTOR rejects such request for change notice request from the NOMINATED SUBCONTRACTOR, the NOMINATED SUBCONTRACTOR shall continue to perform the Work as per the terms of this Contract and in accordance with the instructions provided by the GENERAL CONTRACTOR from time to time.

If any change under this clause directly or indirectly causes an adjustment, i.e. an increase or decrease in the cost of, or the time required for, the performance of any part of the Work under this Contract, whether or not changed by any order, an equitable adjustment shall be made and the Contract shall be modified accordingly.

If the NOMINATED SUBCONTRACTOR intends to assert a claim for an equitable adjustment under this clause it must, within Seven (7) days after receipt of a Change Notice, provide written notification of such intent and within a further fourteen (14) days, pursuant to Clause [Pricing Of Adjustments] of Conditions of Particular Application - Annexure 3, submit to the GENERAL CONTRACTOR a written proposal setting forth the nature, schedule impact and monetary extent of such claim in sufficient detail.

The GENERAL CONTRACTOR within thirty (30) days from the date of submission of request by the NOMINATED SUBCONTRACTOR with all relevant and equated details substantiating the request, provide a written final determination setting forth the basis for its decision and defining what adjustments it considers equitable and will issue the instructions to the NOMINATED SUBCONTRACTOR. Upon the NOMINATED SUBCONTRACTOR's written acceptance of the GENERAL CONTRACTOR's determination, the Contract shall be modified and the determination shall be implemented accordingly. In the event of no agreement being reached between parties, the GENERAL CONTRACTOR may in its sole discretion pay such amounts and/or revise the time for performance of the Work in accordance with GENERAL CONTRACTOR's final determination.

If the GENERAL CONTRACTOR's final determination is not accepted by the NOMINATED SUBCONTRACTOR the same shall constitute a dispute which shall be resolved in accordance with Clause [Dispute Resolution] of this Annexure 2.

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Notwithstanding anything contained in this Contract, any Change Notice issued by the GENERAL CONTRACTOR indicating a change required due to the reasons of failure, acts or omissions of the NOMINATED SUBCONTRACTOR, its representatives or its sub-contractor(s) and their representatives, such a Change shall not entitle the NOMINATED SUBCONTRACTOR to any compensation/damages or extension of time for performance and the NOMINATED SUBCONTRACTOR hereby unconditionally and irrevocably accepts such Change.

Any delay by NOMINATED SUBCONTRACTOR in giving notice or presenting a proposal for adjustment under this clause shall be ground for rejection of the claim. In no case shall a claim by the NOMINATED SUBCONTRACTOR be considered if asserted after final payment has been made by the GENERAL CONTRACTOR under this Contract.

The NOMINATED SUBCONTRACTOR shall proceed diligently with performance of the Work, pending final resolution of any request for relief, dispute, claim, appeal, or action arising under the Contract, and comply with any decision of the GENERAL CONTRACTOR.

28. WARRANTY

The NOMINATED SUBCONTRACTOR represents and warrants to the GENERAL CONTRACTOR that (i) the NOMINATED SUBCONTRACTOR is fully experienced, properly qualified, equipped to perform the Work and that the NOMINATED SUBCONTRACTOR has adequate financial resources and expertise to discharge all its obligations under this Contract; (ii) the NOMINATED SUBCONTRACTOR is familiar with and shall execute the Work in accordance with Good Practices; (iii) the equipment and materials furnished under this Contract shall be new, of clear title and of the most suitable grade of their respective kinds for their intended uses, unless otherwise specified by the GENERAL CONTRACTOR and free from any defect or deficiencies; (iv) All workmanship shall be first class and performed in accordance with internationally sound construction practices as may be acceptable to the GENERAL CONTRACTOR; and (v) All equipment, materials and workmanship shall also conform to the specifications mentioned in the Contract.

The warranty of the NOMINATED SUBCONTRACTOR contained in this Contract shall be valid for a period commencing from Work commencement till date falling on expiry of Twelve (12) months from the date of issuance of the Partial Acceptance Certificate or Final Acceptance Certificate by the GENERAL CONTRACTOR respectively in respect of each Tower/ Towers or the component of Work in respect of Final Acceptance Certificate or Partial Acceptance Certificate has

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been issued. This period of warranty shall stand extended for a further period as specified in this Clause.

If at any time during the warranty period, the GENERAL CONTRACTOR discovers any defect in the design, equipment, materials, or workmanship or Work or any other breach of warranty, the GENERAL CONTRACTOR may issue a written notice to the NOMINATED SUBCONTRACTOR, intimating the NOMINATED SUBCONTRACTOR of such defect/breach and calling upon the NOMINATED SUBCONTRACTOR to perform any of the following, to the satisfaction of the GENERAL CONTRACTOR, within specific period (as indicated in the notice) of receipt of the aforesaid notice:

1. Rework, repair, or remove and replace defective equipment and materials or re-perform defective workmanship or Work or remedy breach of Warranty, to acceptable quality at a time and in a manner acceptable to the GENERAL CONTRACTOR; and/or
2. Cooperate with the GENERAL CONTRACTOR or third parties assigned by the GENERAL CONTRACTOR to correct such defects and pay to the GENERAL CONTRACTOR all actual costs reasonably incurred by the GENERAL CONTRACTOR in performing or in having performed corrective actions; and/or
3. Propose and negotiate in good faith an equitable reduction in the Contract Price in lieu of corrective action, if acceptable to the GENERAL CONTRACTOR.

All costs incidental to corrective actions including demolition for access, removal, disassembly, transportation, reinstallation, reconstruction, retesting and re-inspection as may be necessary to correct the defect and/or to demonstrate that the rectified Work conforms to the requirements of this Contract or the compliance of the NOMINATED SUBCONTRACTOR with the terms of this Contract, shall be solely borne by the NOMINATED SUBCONTRACTOR.

The NOMINATED SUBCONTRACTOR further warrants that any and all corrective actions it performs to rectify breach of any warranty or defects in design, equipment, materials and workmanship or work of substantial nature shall be free of any defects, including defects in design, equipment, materials, workmanship or Work as the case may be, for a further period of twelve (12) months from the date of acceptance of the said corrective action by the GENERAL CONTRACTOR, in addition to any existing warranty period. The provisions of this Clause as applicable during the original warranty period shall mutatis mutandis apply during the extended warranty period of 12 months stated above.

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29. BACKCHARGES

The GENERAL CONTRACTOR may in addition to any other amounts to be recovered from, adjusted against payment to or retained hereunder, retain from any sums otherwise owing to the NOMINATED SUBCONTRACTOR, amounts sufficient to cover the full costs of any of the following:

1. the NOMINATED SUBCONTRACTOR's failure to comply with any provision of this Contract or the NOMINATED SUBCONTRACTOR's acts or omissions in the performance of any part of this Contract, including, but not limited to, violation of any Applicable Laws, order, rule or regulation, including those regarding safety, hazardous materials or environmental requirements; and/or
2. correction of defective or nonconforming Work by redesign, repair, rework, replacement or other appropriate means when the NOMINATED SUBCONTRACTOR states, or by its actions indicates, that it is unable or unwilling to proceed with corrective action in a reasonable time; and/or
3. Cost of cleanup, off-loading or completion of incomplete Work and other work which is to be done/performed by the NOMINATED SUBCONTRACTOR (under the Contract or industry practice), where the GENERAL CONTRACTOR agrees to or is required to take action or perform Work.

The GENERAL CONTRACTOR may also recover/ adjust back charge against the NOMINATED SUBCONTRACTOR for Work done or cost incurred to remedy these or any other NOMINATED SUBCONTRACTOR defaults, errors, omissions or failures to perform or observe any part of this Contract. The GENERAL CONTRACTOR may also recover/adjust back charges from NOMINATED SUBCONTRACTOR in respect of any fine, penalty, levy, etc. imposed on the GENERAL CONTRACTOR by any Local Authority or Governing Body in respect of NOMINATED SUBCONTRACTOR's Scope of work. The GENERAL CONTRACTOR may, but shall not be required to, give the NOMINATED SUBCONTRACTOR written notice before performing such actions or Work or incurring such cost.

The cost of back charge Work shall include:

a. Incurred labour costs including all payroll additives;
b. Incurred net delivered material costs;

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c. Incurred supplier and subcontractor costs directly related to performing the corrective action;

d. Equipment and tool rentals at prevailing rates in the Job Site area; and

e) other related expenses/ cost incurred in relation to the Work.

The above cost of Back-charges shall also include the costs like, but not limited to, GENERAL CONTRACTOR's financial / handling charges required for procurement and issuance of such materials / equipments including taxes as per governing laws, Over-head / supervision charges for the Labours supplied and output taxes or similar levies, etc.

The GENERAL CONTRACTOR may separately invoice and/ or deduct from payments otherwise due to the NOMINATED SUBCONTRACTOR, the costs or back charges as provided herein. The GENERAL CONTRACTOR's right to back charge is in addition to any and all other rights and remedies provided in this Contract or by Law. The performance of back charge Work by the GENERAL CONTRACTOR shall not relieve the NOMINATED SUBCONTRACTOR of any of its responsibilities under this Contract including but not limited to express or implied warranties, specified standards for quality, contractual liabilities and indemnifications, and meeting the Contract Milestones contained in Clause [Commencement, Progress and Completion of the Work] of Conditions of Particular Application - Annexure 3. The GENERAL CONTRACTOR shall also be entitled to recover back charges from any of the securities provided by the NOMINATED SUBCONTRACTOR to the GENERAL CONTRACTOR under this Contract including, by adjusting retention amount, invocation of performance bank guarantee or other guarantees provided by the NOMINATED SUBCONTRACTOR, etc.

30. INDEMNITY

Without prejudice to any other right available to the GENERAL CONTRACTOR in law or contract or under equity, the NOMINATED SUBCONTRACTOR shall be liable to compensate and indemnify, defend and hold harmless, the GENERAL CONTRACTOR, its affiliates, subsidiaries, directors, officers, employees and representatives, from and against, any and all losses, liabilities, damages, deficiencies, demands, claims, actions, judgments or causes of action, assessments, interest, penalties and other costs or expenses (including, without limitation, reasonable attorneys' fees and expenses), ("**Losses**") incurred or suffered by, imposed upon or asserted against the GENERAL CONTRACTOR and/or its affiliates, directors, officers or employees of whatsoever kind or nature in connection with or incidental to the performance of this Contract or failure to perform its obligations under this Contract, whether such Losses arise before or after completion of the Work hereunder and/or in any manner are directly or indirectly caused, occasioned, or contributed to in whole or in part, or claimed to be caused, occasioned or contributed to in whole

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or in part, by reason of any act, omission, fault or negligence whether active or passive of NOMINATED SUBCONTRACTOR, its employees, suppliers, subcontractors or of anyone acting under the direction or control or on behalf of the NOMINATED SUBCONTRACTOR.

The foregoing indemnity shall include, but is not limited to, indemnity for:

a. Property damage and injury to or death of any person, including employees of the GENERAL CONTRACTOR, NOMINATED SUBCONTRACTOR and other Subcontractors of any tier ; and
b. The breach by the NOMINATED SUBCONTRACTOR of any representation, warranty, covenant, or any obligations contained in this Contract or any and every document executed by the NOMINATED SUBCONTRACTOR pursuant to or in connection with this Contract.

31. INTELLECTUAL PROPERTY RIGHTS AND INDEMNITY

The NOMINATED SUBCONTRACTOR acknowledges that all Intellectual Property Rights, including all intellectual property which the NOMINATED SUBCONTRACTOR, solely or jointly, has conceived or developed or reduced to practice, during the execution of the Work in relation to the Work, shall belong to the GENERAL CONTRACTOR absolutely. The GENERAL CONTRACTOR alone, at its sole discretion, shall have the right to exploit any and all of the said rights by any means throughout the world. The NOMINATED SUBCONTRACTOR shall not have nor claim any right in any of the aforementioned Intellectual Property Rights in any manner whatsoever. The NOMINATED SUBCONTRACTOR further understands and agrees that the decision whether or not to commercialize or market the Intellectual Property Rights is within the GENERAL CONTRACTOR's sole discretion.

The NOMINATED SUBCONTRACTOR hereby assigns all such Intellectual Property Rights, absolutely in favour of the GENERAL CONTRACTOR without any limitation and further undertakes, if called upon by the GENERAL CONTRACTOR, to do all acts, deeds and things, including execution of necessary documents without charge or compensation, but at the cost of the GENERAL CONTRACTOR for fully and effectively vesting in the GENERAL CONTRACTOR any such Intellectual Property Rights including, but not limited to, the disclosure to the GENERAL CONTRACTOR of all pertinent information and data with respect thereto, the execution of all applications, specifications, oaths, assignments and all other instruments that the GENERAL CONTRACTOR deems necessary in order to apply for and obtain such rights and in order to assign and convey to the GENERAL CONTRACTOR, its successors, assigns, and nominees the sole and exclusive rights, title and interest in and to such Intellectual Property Rights.

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The NOMINATED SUBCONTRACTOR hereby undertakes that the NOMINATED SUBCONTRACTOR shall not use any materials, designs, drawings, processes in the performance of the Work, which shall in any manner whatsoever; infringe on the intellectual property rights of any third party.

The NOMINATED SUBCONTRACTOR hereby indemnifies and agrees to defend and hold harmless the GENERAL CONTRACTOR, and their representatives from and against any and all claims, actions, losses, damages, and expenses, including attorney's fees, arising from any claim, whether rightful or otherwise, that any concept, product, design, equipment, material, process, copyrighted material or confidential information, or any part thereof, furnished by the NOMINATED SUBCONTRACTOR under this Contract constitutes or may constitute an infringement of any patent or copyrighted material or a theft of trade secrets of any third party. If use of any part of such concept, product, design, equipment, material, process, copyrighted material or confidential information is limited or prohibited, the NOMINATED SUBCONTRACTOR shall, at its sole expense, procure the necessary licenses to use the infringing or a modified but non-infringing concept, product, design, equipment, material, process, copyrighted material or confidential information or, with the GENERAL CONTRACTOR's and/or the GENERAL CONTRACTOR's prior written approval, replace it with substantially equal but non-infringing concepts, products, designs, equipment, materials, processes, copyrighted material or confidential information; provided, however:

a. that any such substituted or modified concepts, products, designs, equipment, material, processes, copyrighted material or confidential information shall meet all the requirements and be subject to all the provisions of the Contract; and
b. that such replacement or modification shall not modify or relieve NOMINATED SUBCONTRACTOR of its obligations under the Contract.

The foregoing obligation shall not apply to any concept, product, design, equipment, material, process, copyrighted material or confidential information the detailed design of which (excluding rating and/or performance specifications) has been furnished in writing by the GENERAL CONTRACTOR to the NOMINATED SUBCONTRACTOR.

32. SUSPENSION

The GENERAL CONTRACTOR, without assigning any reasons, may by written notice to the NOMINATED SUBCONTRACTOR, suspend at any time, the performance of all or any portion of the Work to be performed under this Contract. Upon receipt of such notice, the NOMINATED SUBCONTRACTOR shall, unless the notice requires otherwise:

1. Immediately discontinue Work on the date and to the extent specified in the notice;

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2. Place no further orders or subcontracts for material, services, or facilities with respect to suspended Work other than to the extent specified in the notice;
3. Promptly make every reasonable effort to obtain suspension upon terms satisfactory to the GENERAL CONTRACTOR of all orders, subcontracts and rental / hiring agreements, if any to the extent they relate to performance of suspended Work;
4. Continue to protect and maintain the Work including those portions on which Work has been suspended; and
5. Take any other reasonable steps to minimize costs associated with such suspension.

Upon receipt of notice to resume suspended Work, the NOMINATED SUBCONTRACTOR shall immediately and in any event not later than Fifteen (15) days, resume performance of the suspended Work under this Contract to the extent required in the notice.

The NOMINATED SUBCONTRACTOR shall not be entitled to any adjustment or relief, including increase in Contract Price or extension of time for any suspension ordered by the GENERAL CONTRACTOR due to reasons attributable to the NOMINATED SUBCONTRACTOR. If NOMINATED SUBCONTRACTOR intends to assert a claim for equitable adjustment arising out of suspension ordered by the GENERAL CONTRACTOR otherwise than due to reasons attributable to the NOMINATED SUBCONTRACTOR it must, pursuant to Clause [Changes and Consequential Adjustments] of this Annexure 2 and within Seven (7) days after receipt of notice to resume Work, submit a written notification of claim and within fourteen (14) days thereafter its written proposal setting forth the impact of such claim. In such a case, the provisions of Clause [Changes and Consequential Adjustments] of this Annexure 2 shall apply to the extent relevant

33. EVENT OF DEFAULT AND CONSEQUENCES

Occurrence of any of the following events shall be construed to be an Event of Default committed by the NOMINATED SUBCONTRACTOR; when the NOMINATED SUBCONTRACTOR:

1. Performs Work, which fails to conform to the requirements of this Contract; or
2. Fails to make progress, which in the opinion of GENERAL CONTRACTOR may affect the performance of this Contract; or
3. Abandons or refuses to proceed with any of the Work, including modifications directed pursuant to Clause [Changes and Consequential Adjustments] of this Annexure 2; or
4. Fails to fulfill or comply with any of the terms of this Contract; or
5. Engages in behavior that is dishonest, fraudulent or constitutes a conflict of interest with NOMINATED SUBCONTRACTOR's obligations under this Contract; or

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6. fails to submit Bank Guarantees or Performance Security for the original or the extended period, as the case may be; or
7. becomes insolvent or makes a general assignment for the benefit of creditors or reasonable grounds for insecurity arise with respect to NOMINATED SUBCONTRACTOR's performance; or
8. does not commence the Works, or does not progress satisfactorily as per the Contract Schedule or does not maintain quality of Work or neglects or does not comply with GENERAL CONTRACTOR's instructions.

Upon occurrence of an Event of Default, the GENERAL CONTRACTOR reserves the right to take any or all of the following remedial measures, without prejudice to any of its other rights under this Contract, in law or in equity:

- Reduce Scope of the Work; and/or
- Recover damages for delay – The NOMINATED SUBCONTRACTOR shall pay to the GENERAL CONTRACTOR the amounts stated in accordance with Clause [Liquidated Damages] of this Annexure 2; and/or
- En-cash any of the guarantees provided by the NOMINATED SUBCONTRACTOR pursuant to the contract including:
    (i) Mobilization Advance Bank Guarantee given as per Clause of the Conditions of Particular Application - Annexure 3 **(if applicable)**;
    (ii) Bank Guarantee given pursuant to the Clause [Performance and Payment Securities] of Conditions of Particular Application - Annexure 3.
- Forfeit Retention Money - as defined in Clause 15 [Invoicing and Payment] of Annexure 3); and/or
- Execute the balance Work in full or part (including any rectification in Work already executed by the NOMINATED SUBCONTRACTOR) either on its own or through any other agency at the risk and cost of the NOMINATED SUBCONTRACTOR as well as recover all losses from the NOMINATED SUBCONTRACTOR; and/or
- Terminate this Contract in accordance with Clause [Termination] of this Annexure 2.

Notwithstanding the aforesaid, in the event the NOMINATED SUBCONTRACTOR has delayed in the performance of the Work and the GENERAL CONTRACTOR, in its sole discretion has reason to believe, that the Work can be completed by the NOMINATED SUBCONTRACTOR within a reasonable time after the expiry of the stipulated time in the Contract, may in its sole discretion, allow further extension subject however to payment of liquidated damages by the NOMINATED SUBCONTRACTOR. The GENERAL CONTRACTOR will be entitled without prejudice to any

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other right or remedy available in that behalf; to recover from the NOMINATED SUBCONTRACTOR as agreed liquidated damages in accordance with Clause [Liquidated Damages] of Annexure 2.

The GENERAL CONTRACTOR, if not satisfied that the Work can be completed by the NOMINATED SUBCONTRACTOR, and in the event of failure on the part of the NOMINATED SUBCONTRACTOR to complete Work within further extension of time allowed as aforesaid, shall be entitled, without prejudice to any other right, or remedy available in that behalf, to rescind the Contract.

34. TERMINATION

Upon the occurrence of any of the Events of Default specified in Clause [Event of default and Consequences] of this Annexure 2, the GENERAL CONTRACTOR shall be entitled to notify the NOMINATED SUBCONTRACTOR in writing of the nature of the failure/breach and call upon the NOMINATED SUBCONTRACTOR to remedy such failure/breach, within Fifteen (15) days of receipt of a notice from the GENERAL CONTRACTOR, if the default is curable, or sooner if safety is involved, failing which the GENERAL CONTRACTOR shall be entitled to forthwith terminate this Contract in full or in part. If the default is not curable, the GENERAL CONTRACTOR shall be entitled to terminate the Contract in full or in part forthwith by giving a notice in writing to the NOMINATED SUBCONTRACTOR.

In case of partial termination of the Contract and/or reduction in scope of work, the NOMINATED SUBCONTRACTOR shall cease to have any right to carry on the terminated Work or any claim, relief or benefit regarding the same. Further, the NOMINATED SUBCONTRACTOR shall continue to remain fully liable for carrying out and completing non-terminated Work and/or the reduced scope of work in accordance with the terms of this Contract, except to the extent stipulated otherwise by the GENERAL CONTRACTOR.

In case the GENERAL CONTRACTOR undertakes the terminated Work by itself or through any third party, the NOMINATED SUBCONTRACTOR and its sureties, if any, shall be liable for all costs in excess of the Contract Price for such terminated Work reasonably and necessarily incurred in the completion of such Work, including cost of administration of any purchase order or subcontract awarded to others for completion.

Upon termination of the Contract, NOMINATED SUBCONTRACTOR shall:

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a. Immediately discontinue Work on the date in the notice and place no further purchase orders or subcontracts;
b. Take inventory of, maintain and return to the GENERAL CONTRACTOR all data, designs, licenses, equipment, materials, plant, tools, and property furnished/ procured by the NOMINATED SUBCONTRACTOR or provided by the GENERAL CONTRACTOR all documents/ evidence of Warranty of the goods/ material/ component procured by the NOMINATED SUBCONTRACTOR forming part of/ used in the Work;
c. Promptly obtain cancellation upon terms satisfactory to the GENERAL CONTRACTOR of all purchase orders, subcontracts, rentals, or any other agreements existing as directed by the GENERAL CONTRACTOR or have it assigned to the GENERAL CONTRACTOR at the option of the GENERAL CONTRACTOR;
d. Cooperate with the GENERAL CONTRACTOR in the transfer of data, designs, licenses and information and disposition of Work in progress so as to ensure transfer of all the data required to complete the Work;
e. Comply with such other requests from the GENERAL CONTRACTOR as may be reasonable to ensure completion of the Work by the GENERAL CONTRACTOR through any other agency or NOMINATED SUBCONTRACTOR; and
f. Vacate the Job Site and remove its employees, agents, establishments from the said Job Site on obtaining due permission from the GENERAL CONTRACTOR.

In case of termination of the Contract due to the default of the NOMINATED SUBCONTRACTOR, the GENERAL CONTRACTOR, without prejudice to any of its other rights under this Contract, law or equity, shall be entitled to

(i) forfeit the Retention Money [as defined in Clause (Invoicing and Payment) of Annexure – 3) recovered through Running Advance (R.A.) Bills, en-cash Performance Bank Guarantee submitted by the NOMINATED SUBCONTRACTOR and also en-cash Bank Guarantee submitted by the NOMINATED SUBCONTRACTOR towards Mobilization Advance to recover the unadjusted part of Mobilization Advance (if applicable) or any other guarantee/ security provided by the NOMINATED SUBCONTRACTOR;

(ii) take possession of and utilize any data, designs, licenses, equipment, materials, plant, tools, and property goods of any kind furnished by the NOMINATED SUBCONTRACTOR and necessary to complete the Work through any other NOMINATED SUBCONTRACTOR at the cost and expense of the NOMINATED SUBCONTRACTOR;

(iii) recover liquidated damages as per Clause [Liquidated Damages] of Annexure – 2;

(iv) reasonable amount as and by way of loss of opportunity or reputation; and

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(v) recover the penalty/ damages/ compensation payable by the GENERAL CONTRACTOR to the end user of Work.

35. OPTIONAL TERMINATION

The GENERAL CONTRACTOR may, at its option without assigning any reasons terminate this Contract by providing a written notice to the NOMINATED SUBCONTRACTOR.

Upon any such termination, the NOMINATED SUBCONTRACTOR shall forthwith take the steps specified in Clause GC- [Termination] to be taken by the NOMINATED SUBCONTRACTOR upon termination and shall waive any claims for damages including loss of anticipated profits; on account thereof, but as the sole right and remedy of NOMINATED SUBCONTRACTOR, GENERAL CONTRACTOR is entitled to pay in accordance with the following:

a. The Contract Price corresponding to the Work performed in accordance with this Contract prior to such notice of termination;
b. Reasonable administrative costs of settling and paying claims arising out of the termination of Work under purchase orders or subcontracts subject to submission of satisfactory supporting documents by the NOMINATED SUBCONTRACTOR including proof of payments;
c. Reasonable costs incurred in disposition of residual material, plant and equipment.

36. FINAL INSPECTION AND ACCEPTANCE

When the NOMINATED SUBCONTRACTOR considers the Work, or any part of the Work under this Contract to be complete and ready for acceptance, the NOMINATED SUBCONTRACTOR shall notify GENERAL CONTRACTOR in writing. The GENERAL CONTRACTOR, with NOMINATED SUBCONTRACTOR's cooperation, will conduct such reviews, inspections and tests as may be reasonably required to satisfy GENERAL CONTRACTOR that the Work, or identified portion of the Work, conforms to all requirements of the Contract. If all or any part of the Work covered by NOMINATED SUBCONTRACTOR's notice does not conform to Contract requirements, the GENERAL CONTRACTOR shall notify NOMINATED SUBCONTRACTOR of such nonconformance and NOMINATED SUBCONTRACTOR shall take corrective action and then have the nonconforming Work re-inspected until all Contract Specifications are satisfied.

GENERAL CONTRACTOR is entitled at its sole discretion to issue a Partial Acceptance Certificate for individual portions, which have been satisfactorily, inspected subject only to GENERAL CONTRACTOR 's Final Acceptance of the Work as a whole.

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"Partial Acceptance Certificate" means the certificate issued by the GENERAL CONTRACTOR to the NOMINATED SUBCONTRACTOR on completion of work for individual portion as per the terms of Work Order to the satisfaction of GENERAL CONTRACTOR in conjunction to the stipulation mentioned under the Clause [Final Inspection and Acceptance] of this Annexure 2.

Notwithstanding anything contained herein, the GENERAL CONTRACTOR shall be entitled to call upon the NOMINATED SUBCONTRACTOR to complete any portion of the Work to the satisfaction of the GENERAL CONTRACTOR for issue of the Final Acceptance Certificate.

37. FIRST AID FACILITIES

Where the GENERAL CONTRACTOR has first-aid facilities at the Job Site they will make available their first-aid facilities on free basis for the treatment of employees, personnel, representatives, agents, of the NOMINATED SUBCONTRACTOR and employees, personnel, representatives, agents, of the sub-contractors who may be injured or become ill while engaged in the performance of the Work under this Contract.

If first-aid facilities and/or services are made available to the NOMINATED SUBCONTRACTOR's employees, personnel, representatives, agents or to the employees, personnel, representatives, agents, of the sub-contractor then, in consideration for the use of such facilities and the receipt of such services, the NOMINATED SUBCONTRACTOR hereby agrees:

1. to include as part of its obligation under Clause [Indemnity] of this Annexure 2,the obligation to defend, indemnify and hold and against harmless the GENERAL CONTRACTOR from all claims, demands and liabilities arising from the use of such services or facilities; and
2. In the event any of the NOMINATED SUBCONTRACTOR's employees, personnel, representatives, agents or the employees, personnel, representatives, agents, of the sub-contractors require any off-site medical services, including transportation thereto, to promptly pay for such services directly to the providers thereof.

38. SAFETY, HEALTH AND SECURITY REQUIREMENTS

(A) SAFETY AND HEALTH

The NOMINATED SUBCONTRACTOR shall be solely responsible for conducting operations under this Contract to avoid risk of harm to the health and safety of persons and property and for inspecting and monitoring all its equipment, materials and Work practices to ensure compliance with its obligations under this Contract.

NOMINATED SUBCONTRACTOR shall be solely responsible to conform and comply with:

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1. All Applicable Laws, ordinances, statutes, rules, regulations, and codes governing safety and health at the Job Site;
2. NOMINATED SUBCONTRACTOR's specific Scope of Work under this Contract; and
3. GENERAL CONTRACTOR's safety and health standards as set forth in the General Condition titled "SAFETY, HEALTH AND SECURITY REQUIREMENTS, as well as GENERAL CONTRACTOR's SHE guidelines, including revisions thereto.

NOMINATED SUBCONTRACTOR shall assume all responsibility and liability with respect to all matters regarding the safety and health of its employees, personnel, representatives, suppliers, agents etc. and the employees, personnel, representatives, agents etc. of the NOMINATED SUBCONTRACTOR's suppliers and subcontractors, with respect to the risks under this Contract.

The NOMINATED SUBCONTRACTOR's failure to correct any unsafe condition or unsafe act by its employees, suppliers or subcontractors, representatives or agents etc. may, at the sole discretion of the GENERAL CONTRACTOR, be grounds for an order by the GENERAL CONTRACTOR to stop the affected Work or operations at the costs and consequences of the NOMINATED SUBCONTRACTOR until the unsafe act or condition is corrected to the GENERAL CONTRACTOR's satisfaction at the NOMINATED SUBCONTRACTOR's expense.

If the unsafe act or condition continues despite notice and reasonable opportunity to effect a resolution, the GENERAL CONTRACTOR may, at its sole discretion, correct the unsafe act or condition at the NOMINATED SUBCONTRACTOR's expense pursuant to Clause [Back charges] of this Annexure 2 and be entitled to terminate this Contract pursuant to Clause [Termination] of this Annexure 2 and/or recover/adjust the cost/expense for such resolution from the NOMINATED SUBCONTRACTOR.

Unless otherwise specified by the GENERAL CONTRACTOR, the NOMINATED SUBCONTRACTOR shall furnish details of all safety equipment required for the Work to the GENERAL CONTRACTOR and require the use of such safety equipment, and provide safety instructions to its employees, representatives, agents and personnel etc.

The NOMINATED SUBCONTRACTOR shall maintain accident and injury records and all other books/records as required by Applicable Laws and regulations. The NOMINATED SUBCONTRACTOR shall make such records available to the GENERAL CONTRACTOR within Two (2) days of a written request from the GENERAL CONTRACTOR in this behalf. NOMINATED SUBCONTRACTOR shall furnish GENERAL CONTRACTOR with a weekly and monthly summary of accidents, injuries, and labour hours lost to Work related injuries of its employees, personnel, representatives, agents etc. and employees, personnel, representatives,

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agents etc. of the NOMINATED SUBCONTRACTOR's suppliers and/or subcontractors, in a form and format provided by the GENERAL CONTRACTOR.

NOMINATED SUBCONTRACTOR shall immediately report to the GENERAL CONTRACTOR any death, injury or damage to property incurred or caused to the NOMINATED SUBCONTRACTOR's employees, personnel, representatives, agents etc. and employees, personnel, representatives, agents etc., of the NOMINATED SUBCONTRACTOR's suppliers and/or subcontractors. The NOMINATED SUBCONTRACTOR shall immediately take suitable remedial measures in such cases and ensure that the GENERAL CONTRACTOR and GENERAL CONTRACTOR's representatives are kept indemnified against and transfers from such events.

(B) SECURITY REQUIREMENTS

In performance of the Work under this Contract, the NOMINATED SUBCONTRACTOR shall ensure the following security requirements & implement the same on commencement of Work at Job Site.

1. Controlled access to office, warehouse, material and equipment sites.
2. Provide physical security of office, warehouse, material and equipment.
3. Periodic security checks of all Work areas demarcated to the NOMINATED SUBCONTRACTOR.
4. Control of material and equipment packaging, transportation, and delivery to the Job Site.
5. Accountability procedures for storage, requisition and issue of material and equipment.
6. Personnel security to include, but not limited to, compliance with Project Work rules (access, budging, prohibited activities and items, etc.)
7. Communications security to include, but not limited to, use of radios, radio finders, beacons, etc.
8. Prompt reporting of incidents of loss, theft pilferage, sabotage or vandalism to the GENERAL CONTRACTOR followed by detailed written report.
9. Supervisor to be employed in all labour camps to ensure no physical abuse, and no consumption of liquor takes place in the labour camp.

39. EXPLOSIVES

Explosives, if required, shall be transported to the Job Site only when required to perform the Work under this Contract and with prior notice to and only after obtaining the prior written approval of the GENERAL CONTRACTOR. The NOMINATED SUBCONTRACTOR shall be responsible for properly purchasing, transporting, storing, safeguarding, handling and using

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explosives required to perform the Work under this Contract. The NOMINATED SUBCONTRACTOR shall obtain the requisite licenses/ approvals permissions in this regard. The NOMINATED SUBCONTRACTOR shall employ competent and qualified personnel for the use of explosives and, notwithstanding any other provision in the Contract to the contrary, shall assume full responsibilities for the cost of any incidental or consequential damages caused by the improper use of explosives.

Residual surplus explosives shall be promptly removed from the Job Site and properly disposed of by the NOMINATED SUBCONTRACTOR. The NOMINATED SUBCONTRACTOR alone shall be responsible for the claims/ losses/ damages relating to and/or arising out of use of explosive by the NOMINATED SUBCONTRACTOR.

The NOMINATED SUBCONTRACTOR shall indemnify the GENERAL CONTRACTOR from any suits, actions, legal or administrative proceedings, claims, demands, damages, liabilities, expenses, etc., due to improper action of the NOMINATED SUBCONTRACTOR like, but not limited to, purchasing, transporting, storing, safeguarding, handling and using of explosives including non-compliance of any statutory requirements.

40. TITLE AND RISK OF LOSS

Where NOMINATED SUBCONTRACTOR purchases equipment, materials or other tangible items ("**Goods**") for incorporation into the Work or any of its separate parts, the title of such Goods shall be vested in GENERAL CONTRACTOR when the first of the following events occurs:

1. The Goods or part thereof is first identifiable as being appropriated to the Contract; or
2. When GENERAL CONTRACTOR pays for the Goods or part thereof in accordance with the Contract, or
3. When the Goods or part thereof are dispatched to or from NOMINATED SUBCONTRACTOR's fabrication yard or to the Job Site.

However such transfer of title in the Goods will be without prejudice to GENERAL CONTRACTOR's right to refuse the Goods in case of non-conformity with the requirements of the Contract.

Irrespective of transfer of title in the Goods, NOMINATED SUBCONTRACTOR shall remain responsible for risk of loss or damage to Work in progress and all Goods until issue of Final Acceptance Certificate by the GENERAL CONTRACTOR.

NOMINATED SUBCONTRACTOR shall ensure that the above provisions are imposed upon its suppliers and subcontractors of any tier and shall execute all documents and take all steps

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necessary or required by GENERAL CONTRACTOR to vest title as GENERAL CONTRACTOR may direct.

Title to standard Goods of the type usually bought in bulk such as reinforcement bars, piping materials, non-tagged instruments and instrument installation material, cable and similar items which are not incorporated into the Work shall revert to NOMINATED SUBCONTRACTOR upon agreement by GENERAL CONTRACTOR that such Goods are not required for the Work.

41. MEASUREMENT SYSTEM

The NOMINATED SUBCONTRACTOR shall use the English standard/metric (SI) system of measurement for all designs, specifications, drawings, plans and Work except as otherwise directed in writing by GENERAL CONTRACTOR.

42. LIQUIDATED DAMAGES

The parties hereby agree that the provisions of this Clause shall apply, except to the extent otherwise specified in Annexure 3 - [Conditions of Particular Application]. The provisions of Annexure 3-[Conditions of Particular Application], if any, relating to Liquidated Damages shall supersede the provisions of this Clause.

The NOMINATED SUBCONTRACTOR hereby agrees that the GENERAL CONTRACTOR will sustain damages as a result of NOMINATED SUBCONTRACTOR's failure to meet the Contract Milestones and/or Contract Schedule. In the event of such failure by the NOMINATED SUBCONTRACTOR, the GENERAL CONTRACTOR shall have at its absolute discretion to levy and recover/ adjust the liquidated damages as set forth in the Clause [Liquidated Damages] of Conditions of Particular Application - Annexure 3. The NOMINATED SUBCONTRACTOR acknowledges that the said damages are fair and reasonable genuine pre-estimate of losses/damages that the GENERAL CONTRACTOR may suffer due to failure of the NOMINATED SUBCONTRACTOR to meet Contract Milestones and/or Contract Schedule and the same shall not be construed as a penalty.

43. KEY PERSONNEL

The NOMINATED SUBCONTRACTOR shall not reassign or remove the key personnel listed below without the prior written authorization of the GENERAL CONTRACTOR.

Name	**Title/Position**

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[_____] Project Manager

[_____] Site in Charge

44. NO EXTENSION OF TIME OR CHANGE IN CONTRACT PRICE

Extension of time or change in Contract Price will be considered only in accordance with the terms of this Contract and not otherwise.

The NOMINATED SUBCONTRACTOR shall not be entitled to any extension of time and/or increase in price if the cause of the delay is attributable to any negligence, default or improper conduct by itself or its subcontractors/ suppliers.

45. NON-WAIVER

Failure by the GENERAL CONTRACTOR to insist upon strict performance of any terms or conditions of this Contract, or failure or delay to exercise any rights or remedies provided herein or by law, or failure to properly notify the NOMINATED SUBCONTRACTOR in the event of breach, or the acceptance of or payment for any goods or services hereunder, or the review or failure to review the designs shall not release NOMINATED SUBCONTRACTOR from any of the warranties or obligations of this Contract and shall not be deemed a waiver of any right of GENERAL CONTRACTOR to insist upon strict performance hereof or any of its rights or remedies as to any prior or subsequent default hereunder nor shall any termination of Work under this Contract by GENERAL CONTRACTOR operate as a waiver of any of the terms hereof.

46. EXCLUSIVE REMEDY

The NOMINATED SUBCONTRACTOR's remedies specified in this Contract are the sole and exclusive remedies of the NOMINATED SUBCONTRACTOR for the liability of the GENERAL CONTRACTOR to NOMINATED SUBCONTRACTOR arising out of or in connection with this Contract, notwithstanding any remedy otherwise available at law or in equity. The GENERAL CONTRACTOR, its subsidiaries, affiliates and authorized representatives shall not have any other liability to the NOMINATED SUBCONTRACTOR whatsoever under this Contract.

47. DETAIL LIST OF MATERIALS TO BE PROVIDED

The NOMINATED SUBCONTRACTOR, if asked by the GENERAL CONTRACTOR, shall provide a detailed list of materials, articles, fixtures and fittings to be used in completion of the Work specifying the quality and brand.

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48. NON-TRANSFERABLE

This Contract is valid, subsisting and binding upon both the NOMINATED SUBCONTRACTOR and the GENERAL CONTRACTOR, till the period of Warranty expires or the termination of this Contract and is non-transferable, except as provided in Clause [Assignments and Subcontracts] of this Annexure 2.

49. STANDARDS AND CODES

Wherever references are made in this Contract to standards or codes in accordance with which the Work under this Contract is to be performed such reference shall be construed as reference to standards or codes then applicable and as amended from time to time. In case of conflict between any referenced standards and codes and any Contract Documents, the Contract Documents shall prevail.

50. APPLICABLE LAW

This Contract shall be governed by and construed in accordance with the laws of India.

Subject to Clause [Dispute Resolution] of this Annexure 2 below, in relation to any legal action or proceedings arising out of or in connection with this Contract ("**Proceedings**"), each Party hereto irrevocably submits to the exclusive jurisdiction of the competent courts of [Mumbai], India and waives any objection to Proceedings in any such court on the grounds of venue or on the grounds that the Proceedings have been brought in an inappropriate or inconvenient forum.

51. NON-DISCLOSURE

All communications between the Parties or any of them or with or concerning the Work to be performed hereunder or any matters connected with this Contract and all information and other material supplied to or received by the NOMINATED SUBCONTRACTOR from the GENERAL CONTRACTOR or any third party, which is either marked "confidential" or is by its nature intended to be exclusively for the knowledge of the NOMINATED SUBCONTRACTOR alone and any information concerning the Work to be performed hereunder or the business transactions of the GENERAL CONTRACTOR or of any person with whom any of them is in a confidential relationship with regard to the matter in question coming to the knowledge of the NOMINATED SUBCONTRACTOR, shall be kept confidential by the NOMINATED SUBCONTRACTOR. The NOMINATED SUBCONTRACTOR agrees not to divulge to third parties, without the written consent of GENERAL CONTRACTOR, any information obtained from or through GENERAL CONTRACTOR in connection with the performance of this Contract unless the NOMINATED SUBCONTRACTOR can demonstrate with certainty that: -

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1. The information was known to NOMINATED SUBCONTRACTOR prior to obtaining the same from the GENERAL CONTRACTOR; or
2. The information is, at the time of disclosure by NOMINATED SUBCONTRACTOR, then in the public domain; or
3. The information is obtained by NOMINATED SUBCONTRACTOR from a third party who did not receive same, directly or indirectly from GENERAL CONTRACTOR and who has no obligation of secrecy with respect thereto.

The NOMINATED SUBCONTRACTOR further agrees that it will not, without the prior written consent of the GENERAL CONTRACTOR, disclose to any third party any information developed or obtained by NOMINATED SUBCONTRACTOR in the performance of this Contract except to the extent that such information falls within one of the categories described in 1 to 3 above.

If so requested by the GENERAL CONTRACTOR, the NOMINATED SUBCONTRACTOR further agrees to require its employees to execute a nondisclosure agreement prior to performing any Work under this Contract.

52. LAWS AND REGULATIONS

All Applicable Laws, in effect at the time the Work under this Contract is performed shall apply to NOMINATED SUBCONTRACTOR and its employees, subcontractors and representatives.

If during the term of this Contract there are any changes in Applicable Laws not known or foreseeable at the time of signing this Contract which become effective and which affect the cost (which are not agreed to be borne by the NOMINATED SUBCONTRACTOR under this Contract) or time of performance of this Contract, the NOMINATED SUBCONTRACTOR shall immediately notify the GENERAL CONTRACTOR and submit detailed documentation of such effect in terms of both time and cost of performing this Contract. If the Work is affected by such changes and the GENERAL CONTRACTOR in its opinion concurs with their effect, an equitable adjustment will be made pursuant to Clause [Changes and Consequential Adjustments] of this Annexure 2. The decision of the GENERAL CONTRACTOR in this regard shall be final and binding on the NOMINATED SUBCONTRACTOR. The GENERAL CONTRACTOR shall also have a right to suo motu notify the NOMINATED SUBCONTRACTOR of any such changes in Applicable Laws and its determination about effect thereof on the costs or time of the performance of the Contract. Upon such notification by the GENERAL CONTRACTOR, the adjustment notified by the GENERAL CONTRACTOR shall apply in accordance with provision of Clause [Changes and Consequential Adjustments] of this Annexure 2 and the NOMINATED SUBCONTRACTOR shall perform the Contract in accordance with such changes.

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53. DISPUTE RESOLUTION

NOMINATED SUBCONTRACTOR shall not be entitled to claim and neither GENERAL CONTRACTOR shall be liable to NOMINATED SUBCONTRACTOR or its suppliers or subcontractors of any tier in tort (including negligence), or contract except as specifically provided in this contract.

Any claim arising out of or attributable to the interpretation or performance of this contract, which cannot be resolved by mutual discussions & clarifications and negotiation, shall be considered a dispute within the meaning of this clause.

If for any reason GENERAL CONTRACTOR and NOMINATED SUBCONTRACTOR are unable to resolve a claim for an adjustment, NOMINATED SUBCONTRACTOR shall notify in writing that a dispute exists and request for a final determination. Any such request by NOMINATED SUBCONTRACTOR shall be clearly identified by reference to this clause and shall summarize the facts in dispute and NOMINATED SUBCONTRACTOR'S proposal for resolution.

GENERAL CONTRACTOR shall, within thirty (30) days of any request by NOMINATED SUBCONTRACTOR, provide a written final determination setting forth the contractual basis for its decision and defining what contract adjustments it considers equitable. Upon NOMINATED SUBCONTRACTOR's written acceptance of GENERAL CONTRACTOR's determination the contract will be modified and the determination implemented accordingly or, failing agreement, GENERAL CONTRACTOR may in its sole discretion pay such amounts and/or revise the time for performance of the Work in accordance with GENERAL CONTRACTOR's final determination.

If GENERAL CONTRACTOR's final determination is not accepted by NOMINATED SUBCONTRACTOR, NOMINATED SUBCONTRACTOR shall promptly prepare and exchange memoranda addressed to GENERAL CONTRACTOR stating the issues in dispute and their respective positions, summarizing the negotiations that have taken place and attaching relevant documents.

GENERAL CONTRACTOR and NOMINATED SUBCONTRACTOR will meet for negotiations at a mutually agreed time and place. If the matter has not been resolved within thirty (30) days of the commencement of such negotiations, the parties agree to consider resolution of the dispute through some form of Alternative Dispute Resolution (ADR) process, which is mutually acceptable to the parties.

Should the parties agree to pursue an ADR process each party will be responsible for its own expenses incurred to resolve the dispute during the ADR process.

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If the parties do not agree to an ADR process or are unable to resolve the dispute through ADR, within thirty (30) days of the date seeking for ADR process, the parties agree to proceed in accordance with the Condition of Particular Application titled "ARBITRATION."

54. LANGUAGE REQUIREMENTS

The Contract Documents and all notices, communications and submittals between the parties pursuant to the implementation of this Contract shall be in the English language, unless otherwise directed in writing by the GENERAL CONTRACTOR. All translation services, to include the physical presence of qualified translators, necessary for written or oral communications shall be provided by the NOMINATED SUBCONTRACTOR.

55. PUBLICITY AND ADVERTISING

NOMINATED SUBCONTRACTOR shall not make any announcement, take any photographs, or release any information concerning this Contract, or the Project, or any part thereof to any member of the public, press, business entity, or any official body unless prior written consent is obtained from the GENERAL CONTRACTOR

56. FORCE MAJEURE

No delay or failure in performance by either Party shall constitute default or give rise to any claim for damages to the extent; such delay or failure is caused by Force Majeure. Unless such Force Majeure frustrates the performance of this Contract, Force Majeure shall not operate to excuse, but only to delay performance.

Force Majeure is an occurrence of any of the following events which are beyond the control and without the fault or negligence of the Parties and which the Parties are unable to prevent or provide against by the exercise of reasonable diligence:

(i) acts of God or the public enemy;
(ii) expropriation or confiscation;
(iii) war, rebellion, civil disturbances, sabotage, or riots;
(iv) floods or unusually severe weather that could not have been reasonably anticipated; and Fires, explosions, and earthquakes.

Delays attributable to and within the control of NOMINATED SUBCONTRACTOR's suppliers or subcontractors of any tier shall be deemed delays within the control of NOMINATED SUBCONTRACTOR.

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If either Party's performance of this Contract is delayed by a Force Majeure occurrence, such Party shall immediately and in any event not later than seven (7) Days, provide the other Party written notification of existence of Force Majeure with specific details, the delay and its estimated duration. Immediately upon cessation of the effect of Force Majeure occurrence, the affected Party shall:

1. Notify the other Party the same and resume Work as applicable; and
2. If NOMINATED SUBCONTRACTOR is the affected Party, it shall also submit a plan to minimize and mitigate the effect of the Force Majeure occurrence upon completion of the Work.

If a Force Majeure event causes an increase or decrease in the cost or time of performance of the Work an equitable adjustment shall be made, pursuant to Clause [Changes and Consequential Adjustments] of this Annexure 2 to the extent the GENERAL CONTRACTOR determines the Force Majeure event caused any such increase or decrease. Provided however, the notice of existence of a Force Majeure event should have been given by the NOMINATED SUBCONTRACTOR to the GENERAL CONTRACTOR as per the provisions of this Clause. The decision of the GENERAL CONTRACTOR shall be final and binding in this regard.

57. RECORDS AND AUDIT

The NOMINATED SUBCONTRACTOR shall maintain records and accounts in connection with the performance of this Contract, which will accurately document incurred costs, both direct and indirect, of whatever nature for a period of two (2) years from the expiration of the NOMINATED SUBCONTRACTOR's warranty unless otherwise specified by Applicable Laws. The GENERAL CONTRACTOR or their representatives shall have the right to examine and copy, at all reasonable times and with advance notification, such records and accounts for the purpose of verifying payments or requests for payment when costs are the basis of such payment and to evaluate the reasonableness of proposed Contract Price adjustments and claims.

If the GENERAL CONTRACTOR establishes uniform codes of accounts for the Project, NOMINATED SUBCONTRACTOR shall use such codes in identifying its records and accounts.

58. ASSIGNMENTS AND SUBCONTRACTS

Any assignment of this Contract or rights hereunder, in whole or part, without the prior written consent of the GENERAL CONTRACTOR shall be void.

The NOMINATED SUBCONTRACTOR shall not without the prior written approval of the GENERAL CONTRACTOR, subcontract to any third party, the Work or any part thereof. The

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NOMINATED SUBCONTRACTOR shall ensure that the purchase orders and any other documents executed by the NOMINATED SUBCONTRACTOR with any subcontracts or suppliers contain provisions to secure all rights and remedies of the GENERAL CONTRACTOR, as are mentioned herein. Notwithstanding such sub-contracting with the approval of the GENERAL CONTRACTOR, the NOMINATED SUBCONTRACTOR shall remain fully liable to the GENERAL CONTRACTOR for all the obligations of the NOMINATED SUBCONTRACTOR under this Contract.

The NOMINATED SUBCONTRACTOR shall within Seven (7) days of a request by the GENERAL CONTRACTOR, provide to the GENERAL CONTRACTOR, copies of all purchase orders and subcontracts executed by the NOMINATED SUBCONTRACTOR.

The NOMINATED SUBCONTRACTOR shall take approval from the GENERAL CONTRACTOR prior to engaging the service contractors, placement of orders on suppliers for major equipment's / materials. While requesting such approval the NOMINATED SUBCONTRACTOR shall furnish the credentials of the said service contractor or suppliers as may be required by the GENERAL CONTRACTOR.

The GENERAL CONTRACTOR shall be entitled to assign all its rights and obligations under this Contract to any third party in any manner, upon such assignment, the GENERAL CONTRACTOR shall give intimation in writing to the NOMINATED SUBCONTRACTOR. Further, upon such assignment, the NOMINATED SUBCONTRACTOR shall have all rights against and obligations under this Contract only towards such assignee.

59. NOTICES

Any notices, requests, demands or other communication required or permitted to be given under this Contract ("**Notice**") shall be written in English and shall be delivered in any of the following modes of communication, these being: hand delivery, deliveries by courier, or by registered post with acknowledgement due and properly addressed to the attention of the persons mentioned Cover note . The Parties shall communicate change in address if any, to each other.

All notices shall be deemed to have been validly given on (i) when hand delivered, on delivery, (ii) the business date of receipt, if sent by courier or (iii) the expiry of four (4) days after posting, if sent by registered post at the address mentioned in the "Cover note" with acknowledgement due.

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